



McLean Intelligent Workforce

Employee Contract & Policy Handbook

2022

Dear staff members,

Please read the following Employment policies and sign the last page

1. Employment period:

- 1.1. Employment shall be for a period of 2 years, unless otherwise stated on offer letter, beginning the start date on Employee offer letter which can be extended further or terminated earlier with a one (1) month notice on the Employee's side or similar payment thereof.
- 1.2. If an Employee is in an identified 'critical position' that is deemed critical by the management of the company and the same is mentioned on the employee's offer letter then for that Employee the notice obligation will be a period of two (2) months.
- 1.3. The Job will be on "At will Employment" Basis in which the company can Terminate employment with/without prior notice depending on the circumstances or nature of an offence that was conducted by an Employee.
- 1.4. If the Employee does not give the above mentioned notice, the Employee is responsible for any deductions made in pay and/or pay damages amount equal to Employee's basic salary compensation for the period not conformed to in the notice. Furthermore the company has the right to mention on the experience letter that the Employee left without notice.

2. Probation period:

- 2.1. Every employee will be on probation for a period of 3 months (90 days) from the date of commencement of employment with MIW. Confirmation of the contract will depend on the evaluation of the Employee's performance during the period of probation.
- 2.2. During the probation period, if the Employee decides not to continue, the Employee will be required to give a 30 days' notice.

3. Work location:

- 3.1. Employees will be required to work from the physical office location in Karachi, Pakistan.
- 3.2. During the course of the above assignment, Employees shall be liable to be posted/transferred anywhere to serve any of the Company's projects or any other establishment in Pakistan or outside, at the sole discretion of the Management.

4. Payment schedule:

- 4.1. Employee payment will be made on the 1st and 16th date of every month. Payment transferred on the 1st will include compensation for the first fifteen days of the previous month plus any Transportation allowances as indicated on the Employee's offer letter.
- 4.2. Payment transferred on the 16th will include compensation for the remaining days of the previous month and any incentives and/or bonuses earned during the previous month by the Employee.
- 4.3. Payment transfer can take up to 5 business days from the date of processing.
- 4.4. Employees have the responsibility to maintain their timesheets and enter days worked timely in an honest manner. Any discrepancies, confusions or concerns in the timesheet or attendance system should be addressed to supervisor at least 10 days before the pay-date

5. Transportation allowance, arrears and reimbursements:

- 5.1. If Employee is expected to come to the office less than 5 days a week, transportation expenses will be prorated against the number of actual work days in that month

- 5.2. Employee reimbursements for expenses borne by Employee that have been agreed and approved by management in writing in advance of the expense shall be submitted to management and will be paid within the next two pay-dates after submission of proper receipts with date and purpose of expense.

6. US Training Program (UTP)

In the event Employee travels to the United States for training purposes, the following compensation policies may apply:

- 6.1. From the date Employee reaches United States (US), Employee's basic salary should increase by 223%
- 6.2. Any bonuses that the Employee was receiving on a monthly basis shall also increase by the same percentage, 223%, given that the Employee is in US for more than 2 months
- 6.3. If Employee is travelling for a duration that is 6 months or more in length, on successful completion of training program and return to Pakistan office, the basic compensation prior to US travel should appreciate by 20% and this should be the new basic compensation rate for Employee unless otherwise discussed and approved between management and Employee in writing
- 6.4. If Employee is travelling for a duration that is less than 6 months and more than 2 months in length, on successful completion of training program and return to Pakistan office, the basic compensation prior to US travel should appreciate by 10% and this should be the new basic compensation rate for Employee unless otherwise discussed and approved between management and Employee in writing
- 6.5. During an Employee's stay in the US any work related travel and gas expense will be reimbursed to the Employee upon submission of reimbursement receipts according to Company policies.

7. Code of Conduct

- 7.1. Employees are expected to act ethically, honestly and with the highest standard of personal integrity at all times. Employees must comply fully with federal, state and local laws and must conduct their business affairs according to the highest legal and ethical standards.
- 7.2. Employees are obligated to report any violations of any laws or regulations and any unethical, dishonest or improper conduct to supervisor or HR.
- 7.3. It is the policy of the Company to maintain a work environment that encourages mutual respect and promotes respectful and congenial relationships between Employees and that is free from all sorts of harassment by anyone including supervisors, co-workers, vendors, contractors or customers. Harassment even when not unlawful or directed at a protected category is expressly prohibited and will not be tolerated.
- 7.4. Reported incidents of harassment, discrimination or violence will be promptly and thoroughly investigated and necessary actions by the Company will be taken that may lead to warning, suspension or termination of Employment.
- 7.5. Employee will not (except in the normal course of the Company's business) publish any article or statement, deliver any lecture or broadcast or make any communication to the press, including magazine publications relating to the Company's products or to any matter with which the Company may be concerned, unless Employee has previously applied to and obtained the written permission from the Company.
- 7.6. Employees will be required to maintain utmost secrecy in respect of internal processes, marketing plans, strategic plans, operational processes, Company's patterns & trademark and Company's human assets profile.
- 7.7. Employees will be required to comply with all such rules and regulations as the Company may

frame from time to time.

- 7.8. Any of our technical or other important information which might come into Employee possession during the continuance of their assignment with us shall not be disclosed, divulged or made public even thereafter.
- 7.9. Employees will be responsible for the safekeeping and return in good condition and order of all Company property, which may be in Employee use, custody or charge. Use of Company equipment for personal reasons or installation of any software on your equipment is not allowed unless prior management permission is granted.
- 7.10. If in any case a dispute arises between Employee and the Company, and if the same is not settled by mutual consent/arbitration, all litigation proceedings will be carried out in the Karachi courts.

7. Absenteeism

- 7.1. From time to time it may be necessary for an Employee to be late or absent from work on a specific day or time. MIW is aware that emergencies, illnesses or pressing personal business that cannot be scheduled outside work hours may arise. It is the responsibility of all Employees to contact all affected parties if they will be absent or late in a timely manner.
- 7.2. Any Employee who intends to travel for business or personal reasons or is unable to make it to work due to any situation that the Employee is in, they should inform HR and their assigned supervisor the reason of inability to show up and dates that they will be missing in action at least one (1) day prior to the day of absence.
- 7.3. In case any Employee is unable to inform HR and supervisor about their absence at least one (1) day prior in writing, the Employee will get a show cause notice issued by HR and the day will be regarded as unpaid leave. The same will also be discussed during the Employee's evaluation meetings.
- 7.4. The Employee has to respond to the show cause within the next two (2) working days. Failure to respond to the notice may result in Employee termination based on the supervisor and management's decision.
- 7.5. In case any Employee is unable to inform HR about their absence at least one (1) day prior and this situation occurs three (3) times during a month, the Employee may be terminated. First time warning will be verbal (email) followed by a second written warning. Third time occurrence will lead to termination.
- 7.6. Any Employee checking-in after 08:40 AM EST and checking-out at or before 4:30 PM EST will be considered tardiness. Every three instances in one month will result in 1 full day pay deduction for that month.
- 7.7. If an Employee is absent from work for three (3) consecutive days without prior written approval from supervisor and does not update management about failure to become available, the Employee will be considered as withdrawn from job and Employment status will turn to Job Abandoned. All Employee benefits will become inactive starting the day of first absence and Employment is terminated.

8. Tardiness

- 8.1. Work hours for all Full Time staff members are 8:30 AM to 5:30 PM EST Monday through Friday unless otherwise mentioned on the offer letter.
- 8.2. Employees should report to work at least 5 minutes before the start of the work day.
- 8.3. In an occasion where any Employee is unable to make it to work at the office start time they will inform their supervisor by call/text no later than 2 hours prior to the start of day. Employees are expected to keep their manager informed about the delay. In case the supervisor is not available Employee will inform HR via SMS, email or any other form of writing.

- 8.4. Anyone reporting for work after 8:40 AM EST will be marked late unless the late arrival was due to any reason that is disclosed to the Employee's supervisor in writing and the same is approved by the Supervisor. Management may, at its discretion, excuse late arrivals in case of natural disasters or extraordinary circumstances e.g. riots, strikes etc.
- 8.5. In case any Employee fails to inform supervisor and/or HR about inability to start on time, supervisor will issue a verbal warning on each instance before termination on the 5th instance in that month.
- 8.6. Additionally, three (3) late check-ins (later than 8:40 AM) in a month will result in deduction of one day's salary from the Employee's payroll for that month.

9. Time-keeping

- 9.1. All Employees are required to log in with their thumb impression on the attendance machines upon arrival at the office. All entries and updates are recorded automatically by the system.
- 9.2. It's essential for everyone to log in and log out at the attendance system placed at the main door when coming and leaving from work.
- 9.3. If an Employee leaves the office premises during any part of the day they will log in and log out to record the time they were away
- 9.4. In case the attendance system is not working, Employees have the responsibility to update their supervisor immediately in-person or in writing by text that they have arrived on time or if they are leaving or stepping out for any amount of time.
- 9.5. If Employee fails to log out of the system before leaving for the day, might not be eligible for a Tardiness bonus.
- 9.6. Any log update request later than one (1) full working day of the occurrence will only be updated with the approval of the Employee's supervisor. Any missed entry longer than five (5) working days will be considered as absence and will be deducted from the available leave quota.

10. Breaks during work

- 10.1. Regular work hours include a one (1) hour break for lunch and relevant time for prayers.
- 10.2. Every Employee has two (2) short breaks ten (10) minutes each during the day outside of the lunch hour. These breaks can be used by Employees for smoking. Employees are not permitted to take smoking breaks in addition to the short breaks mentioned in this section.
- 10.3. In case the Employee fails to adhere to above break policies, supervisor will issue a verbal warning on each instance before written warning on the 3rd instance and termination on the 5th instance for occurrences within one (1) month.

11. Non-performer, Company code violation or Fraud:

- 11.1. If at any time in our opinion, which is final in this matter Employee is found non-performer or guilty of fraud, dishonest, disobedience, disorderly behavior, negligence, indiscipline, absence from duty without permission or any other conduct considered by us as deterrent to our interest or of violation of one or more terms of this letter, Employee services may be terminated without notice and on account of reason of any of the acts or omission the Company shall be entitled to recover the damages from the Employee. These damages will include the amount that the Company may have lost due to Employee's above mentioned behavior and the amount mentioned in clause 1.4 of the Employee Contract Handbook.

12. Job Abandonment:

- 12.1. If an Employee is absent from work for three (3) consecutive days without prior written approval

from supervisor and does not update management about failure to become available, the Employee will be considered as withdrawn from job and Employment status will turn to Job Abandoned. All Employee benefits will become inactive starting the day of first absence and Employment is terminated.

13. School/Academic Program/Other Employment:

- 13.1.** Any classes the Employee takes at university or any enrollment with an institute/school/program has to be coordinated with HR prior to the decision being made.
- 13.2.** Employees shall not, during the continuance of their employment, enter into services of any person, firm or Company, for any part of time. Employees will faithfully serve the Company and will perform the work assigned to the best of their abilities.
- 13.3.** For two (2) years after termination or expiration of this Agreement, the Employee agrees not to directly or indirectly undertake any employment, or serve as an owner, partner, manager or consultant of any business in the Commonwealth of Virginia, Washington DC metropolitan area, Karachi or any other city or state where the employer is performing business activities that is sustainably similar to, or competitive with, Employer's business.

14. Confidential Information and Assignment of Inventions:

- 14.1.** During the term of this Agreement Employee may become aware of, use, acquire, or create Confidential Information
- 14.2.** Confidential information means all data information to the business and management of the Employer, including but not limited to any intellectual property, know-how, proprietary and trade secret technology, Employee work product, computer software, business operations, marketing, customer lists and development plans
- 14.3.** Confidential information will not include information that:
 - 14.3.1.** Is generally known in the industry of the Employer;
 - 14.3.2.** Is now or subsequently becomes generally available to the public through no wrongful act of the Employee;
 - 14.3.3.** The Employee rightfully had in its possession prior to the disclosure to Employee by the Employer;
 - 14.3.4.** The Employee rightfully obtains from a third party who has the right to transfer or disclose it; or
 - 14.3.5.** The Employee is required by a court of law or regulatory agency to disclose Confidential Information provided that the Employee gives the Employer immediate written notice of any such requirement and the Employer has the opportunity to object to any such order
- 14.4.** All rights, title and interest in any Confidential Information are and will remain the exclusive property of the Employer, and the Employee has no interest in any such Confidential Information notwithstanding the fact that the Employee may have created or contributed to the creation of the same, and notwithstanding that the same may or may not be included in the definition of Confidential Information. The Employee's work product pursuant to this Agreement is a 'work made for hire' under the copyright law of the United States, and the Employee hereby waives any moral rights that the Employee may have with respect to the Confidential Information created by the Employee during the term of employment, or any know-how or intellectual property of the Employer
- 14.5.** The Employee will immediately disclose to the Employer all Confidential Information developed or created in the whole or in part by the Employee During the term of the employment with the Employer. The Employee will execute any instruments and do all other things reasonably requested

by the Employer (both during and after the Employee's employment with the Employer) with regard to such Confidential Information

15. Paid Time Off:

15.1. Holidays:

- 15.1.1.** All employees are entitled to thirteen (11) days of paid holidays in a calendar year. The holidays for each year are listed in Appendix A of the Employee Contract & Policy Handbook

15.2. Vacation Days:

- 15.2.1.** All permanent staff members shall be entitled to fifteen (15) Vacation Days with full pay after successful completion of their probationary period during a calendar year.
- 15.2.2.** Vacation Days shall be allocated on an accrual basis. Vacation days should be availed by Employee in a minimum of two (2) instances during the year and no more than seven (7) vacation days may be availed at any given instance. Special circumstances may be approved with the management's consent in writing at the time of request for time off
- 15.2.3.** In case an employee leaves the organization before the completion of one (1) full year the leave balance will be calculated till the end of the last full month of service
- 15.2.4.** In order to avail Vacation Days Employee must submit the request in writing over email to HR and copy supervisor. Requests for vacation should be submitted at least thirty (30) days in advance of the intended time off period. If a timely leave request is not submitted in that case the leave might not be granted for the specified period and the employee may be asked to reschedule their vacation.
- 15.2.5.** Weekends falling during the Vacation period shall not be counted as Vacation Days.
- 15.2.6.** Vacation Days balance in the employee's account at the end of the year will be carried forward into next year. Employee can gain upto a maximum of twenty (20) Vacation Days during a calendar year. Vacation Days beyond twenty (20) days will be lost by the Employee and will not be encashed or compensated in any other way.
- 15.2.7.** Vacation Days account will not be admissible in case of resignation or dismissal from the service.

15.3. Personal days:

- 15.3.1.** All permanent staff members shall be entitled to six (6) personal days with full pay after successful completion of their probationary period during a calendar year
- 15.3.2.** Employees can avail one (1) non consecutive personal day for domestic purposes with prior written approval from the supervisor
- 15.3.3.** Employees can avail two (2) consecutive personal days casual leave (at one time) for personal/domestic purposes subject to prior approval from the supervisor
- 15.3.4.** Employees can avail three (3) consecutive personal days (at one time) to meet emergencies/commitments/illness or for any emergent unforeseen commitment which the Employee can justify to their supervisor.
- 15.3.5.** In all cases prior approval from the supervisor is mandatory. However, in case of an emergency, prior approval is not necessary but the Employee will inform his/her supervisor or HR (in case supervisor is not available) by any possible means
- 15.3.6.** Personal days balance in the Employee's account at the end of the year will not be carried

forward to next year and will not qualify for encashment.

15.4. Maternity Leave:

- 15.4.1.** All permanent female staff members are entitled to maternity leaves maximum of sixty (60) calendar days with full pay. However, if requested by the Employee and supported by medical certificate, maternity leave may be extended but will remain unpaid. This leave would be granted only twice in the Employee's total tenure of service within the organization. In order to avail maternity leaves, an Employee must submit the request to his/her supervisor at least sixty (60) days in advance.
- 15.4.2.** Maternity leave balance in the Employee's account at the end of the year will not be carried forward to next year and will not qualify for encashment.

15.5. Paternity Leave:

- 15.5.1.** All permanent male staff members are entitled to paternity leave at the birth of their children for five (5) business days with full pay. This leave would be granted only twice in the Employee's total tenure of service within the organization.
- 15.5.2.** Any leave beyond five (5) days would be deducted from the Employee's leave balance. In order to avail Paternity leaves, Employees must submit the request to HR and their supervisor at least thirty (30) days in advance.
- 15.5.3.** Paternity leave balance in the Employee's account at the end of the year will not be carried forward to next year and will not qualify for encashment.

15.6. Wedding Leave:

- 15.6.1.** All permanent staff members on the occasion of their wedding will be granted leave with full pay for a period not exceeding ten (10) business days. This is admissible only once during the period of employment with the Company. In order to avail wedding leaves, Employees must submit the request to HR and their supervisor at least thirty (30) days in advance.
- 15.6.2.** Wedding leave balance in the Employee's account at the end of the year will not be carried forward to next year and will not qualify for encashment.

15.7. Hajj/Umrah Leave:

- 15.7.1.** Upon completion of two years service with the Company, an Employee is entitled up to a maximum of ten (10) days leave with full pay for performing Hajj/Umrah. Such leave is admissible only once during the period of employment with the Company. In order to avail Hajj/Umrah leaves, an Employee must submit a written request to HR and their supervisor at least thirty (30) days in advance.
- 15.7.2.** Hajj/Umrah leave balance in the Employee's account at the end of the year will not be carried forward to next year and will not qualify for encashment.

15.8. Special Sick Leave:

- 15.8.1.** Upon completion of two years service with the Company, a permanent Employee becoming seriously ill or sustaining injuries in an accident, may be allowed thirty (30) days

special sick leaves with pay. It will be permissible only once in the entire period of service and shall be sanctioned by and at the discretion of the Company on a doctor's recommendation. The Company may exercise its right to select the doctor from whom the Employee obtains this recommendation.

- 15.8.2.** Special sick leave balance in the Employee's account at the end of the year will not be carried forward to next year and will not qualify for encashment.

15.9. Bereavement Leave:

- 15.9.1.** An Employee is entitled up to five (5) days of paid bereavement leaves with managerial approval in case of the death of an immediate family member. Immediate family members include: spouse, child, sibling, parent or grandparent.
- 15.9.2.** Bereavement leave balance in the Employee's account at the end of the year will not be carried forward to next year and will not qualify for encashment.

- 15.10. Probationary Employees:** Employees who are on their probationary period in case of emergency are allowed to avail one (1) day of unpaid leave during a month

15.11. Key Principles

- 15.11.1. Right to Avail Leave:** An Employee may not claim leave as a matter of right. Due to exigencies of service, the sanctioning authority may refuse leave of any kind or may recall an Employee before the expiry of leaves awarded earlier
- 15.11.2. Employment during Leave:** An Employee while on leave from the Company is not allowed to accept employment of any nature (permanent, temporary or contractual) without prior written approval of the management. Failure to comply may lead to termination from services
- 15.11.3. Application for Leave:** A staff member who wishes to proceed on leave will submit an application through proper channels sufficiently in advance of the date of intended leave. He or she may proceed on leave only if the sanctioning authority has approved it. If application of two or more Employees is received for the same period of leave, grant of leave will be on a "first come first serve" basis or on the "merit of need". In case of an emergency, an Employee may be accommodated even if he has not applied for the leave earlier than other applicants
- 15.11.4. Resumption of Duty before Expiry:** An Employee on leave may not resume his duty before expiry of his approved leave unless specifically permitted by the sanctioning authority. MIW encourages Employees to avail annual leaves
- 15.11.5. Overstay on Leave:** A staff member who overstays his/her leave under circumstances beyond his/her control must seek permission by telephone or e-mail from the sanctioning authority. Upon return, the staff member should also submit a written explanation to this effect. If the explanation given by the staff member is found unsatisfactory, disciplinary action may be taken against the said Employee
- 15.11.6. Recall to Duty from Leave:** As stated above, the sanctioning authority may recall an Employee before the expiry of leave sanctioned
- 15.11.7. Calculation of Leaves Entitlement:** After successful completion of probation period, the Employee will be entitled to avail leaves which will be allotted on pro rata basis. After completion of one year of service with the Company, the Employee will be entitled for annual leave on a pro rata basis. The entitlement of leaves will only be given to the Employee after being confirmed.

16. Office provided pick & drop service:

- 16.1.** The office pays a monthly transportation allowance to every full-time Employee with the salary. This allowance can be substituted on Employee's choice with availing the pick & drop service.

- 16.2.** If an Employee is not using pick & drop service and if the need arises, this should be communicated to the supervisor 10 days in advance for the office to make the arrangement.
- 16.3.** Pick & drop service runs on a designated route and the Employee has to make arrangements to get to and from the nearest pick up point.
- 16.4.** The time of arrival and departure of the van to and from the office is fixed. Below mentioned timings are strictly observed and can be changed with advance notice to Employees:
- 16.4.1.** Time van will reach office: 6:15 PM PKT (8:15 AM EST)
- 16.4.2.** Time van will depart office: 3:50 AM PKT (5:50 PM EST)
- 16.5.** To ensure the above timings the van will not wait more than 2 minutes at the time of pickup. It is the Employee's responsibility to be ready on time for the van. In case of failure to make it to the pick up point after 2 minutes of the van waiting, the van will leave and the Employee will have to reach the office with their own conveyance without delay.
- 16.6.** The van departs the office at 3:45 AM PKT (5:45 PM EST). In case of failure to make it to the van on time, the van will not wait and the Employee will have to use their own conveyance.

Note: This does not in any way imply that the daily goals or tasks can be compromised or delayed to the next day to catch the van. It is the responsibility of the Employee to get work done within defined work hours.

Welcome to the family and looking forward to a great journey ahead!

Best,
Ali Jamal



Signature, Managing Director

01/03/2022

Date

Please sign the declaration below and return to HR

"I have read and agreed to the above terms of the Employee/Staff Handbook and I confirm that I have received a copy of this agreement".

Signature, Employee

Date

Appendix A

Holiday Schedule 2022

Date	Holiday name	Holiday type
Jan 01	New Year's Day	US Federal Holiday
Jan 17	Martin Luther King Day	US Federal Holiday
May 2*	Eid-ul-Fitr Day 1	PK Public Holiday
May 3*	Eid-ul-Fitr Day 2	PK Public Holiday
May 30	Memorial Day	US Federal holiday
July 04	Independence Day	US Federal Holiday
July 8*	Eid-ul-Azha Day 1	PK Public Holiday
July 9*	Eid-ul-Azha Day 2	PK Public Holiday
September 5	Labor Day	US Federal Holiday
November 11	Veterans Day	US Federal Holiday
November 24	Thanksgiving Day	US Federal Holiday
December 25	Christmas Day	US Federal Holiday

*Subject to sighting of the moon